

		<u>SACC</u> (1) Fraud / misrepresentation (2) Legal malpractice (3) Breach of contract (4) Conversion / misappropriation (5) IIED (6) “retaliation” (see ROA 448) (7) Defamation (8) Extortion (9) Abuse of process. The deemed admitted order for Requests for Admissions, Set Two, attached as Exhibit 31 to the Motion, remove issues from trial that have been deemed admitted; but the order does not remove issues not directly admitted. For example, RFA no. 1 admitted that Kamell altered the retainer agreement, but does not indicate how it was altered. Kamell disputes the specific alterations, which create a triable issue of material fact. Thus, triable issues of disputed fact exist as to some elements of the claims. Moreover, Habashi has not met her burden to show the damages in the SACC in addition to return of \$55,945.61. The SACC asks for compensatory damages in addition to restitution. Habashi also asks for injunctive relief, which is not supported by the Motion. Thus, while some of the claims in the Complaint and SACC could have been summarily adjudicated, the Motion as a whole for summary <i>judgment</i> must be denied. Habashi is ordered to serve notice.
9.	2024-1433160 COVARUBIAS vs. FCA US, LLC.	Defendant FCA US, LLC’s demurrer to Plaintiff Mary Covarubias’ First Amended Complaint is sustained with 30 days leave to amend. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be

accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)

Defendant contends that all of Plaintiff's claims are time-barred by the statutes of limitations in Cal. U. Com. Code, § 2725 and Code Civ. Proc., § 338(d).

Cal. U. Com. Code, § 2725 provides that the statute of limitations for Plaintiff's Song-Beverly claims (i.e., "an action for breach of any contract for sale") is four years. (See *Mexia v. Rinker Coat Co., Inc.* (2009) 174 Cal.App.4th 1297 ["the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the Uniform Commercial Code: section 2725 of the Uniform Commercial Code . . . '(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued.... [¶] (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered"].)

Where a complaint on its face appears time-barred, the plaintiff must affirmatively "plead around" the statute of limitations defense. (See, e.g., *Lewis v. Security-First Nat. Bank of Los Angeles* (1943) 58 Cal. App. 2d 827, 829 [The delayed discovery rule is not satisfied by the mere allegation that plaintiff did not discover the fraud prior to a designated date.]) Moreover, the plaintiff must plead those facts with particularity, like he would a fraud cause of action. (*Weinstock v. Eissler* (1964) 224 Cal.App.2d 212, 227-228 ["plaintiff must state in his complaint when the discovery was made, the circumstances under which it was made, and facts to show that [he] is not at fault for not having made an earlier discovery, and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry."])

Plaintiff alleges in the FAC that he purchased the subject vehicle more than ten years ago, on 10/2/14. (FAC, ¶ 7.) Plaintiff alleges a number of times starting from June 27, 2016, to November 30, 2022, during which he presented the vehicle for various repairs. (FAC, ¶¶ 15-20.) Plaintiff alleges that he discovered Defendants' wrongful conduct shortly before filing the Complaint. (FAC, ¶ 15.)

He alleges that the statute of limitations has been tolled due to a separate class action, the discovery rule, repair doctrine, fraudulent concealment, and Covid. (FAC, ¶¶ 52-70.)

		The allegations are extremely general and not pled with particularity as required in <i>Weinstock, supra</i>, 224 Cal.App.2d at 227-228. Plaintiff does not state any facts regarding the circumstances of his discovery of Defendant's alleged wrongful conduct. With respect to the fraud cause of action, the statute of limitations is only three years pursuant to Code Civ. Proc. § 338(d). Plaintiff alleges in a somewhat conclusory fashion that Defendant concealed material facts about the vehicle's alleged defects, intending to induce Plaintiff to purchase it. (FAC ¶¶ 59-65.) Plaintiff fails to specifically plead facts to circumvent Defendant's statute of limitations defense. Accordingly, based on the foregoing, the Court sustains Defendant's demurrer in its entirety with leave to amend. The motion to strike is moot as a result. Defendant FCA US, LLC shall give notice.
10.	2025-1477322 Gonzales vs. General Motors, LLC	Defendant General Motors, LLC's demurrer to Plaintiffs Mary Gonzales' and Hector Gonzales' Second Amended Complaint ("2AC") is overruled. Defendant's request for judicial notice is granted. <u>1st-3rd causes of action</u> Defendant argues that Plaintiffs' 1st-3rd Song-Beverly causes of action are barred by Code Civ. Proc., § 871.21, a statute effective 1/1/25, which provides in part: (a) An action covered by Section 871.20¹ shall be commenced within one year after the expiration of the applicable express warranty. (b) Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle. that claims made pursuant to Civ. Code, § 1793.2(b) or (d) "shall not be brought later than six years after the date of original delivery of the motor vehicle."

¹ Code Civ. Proc., § 871.20 specifies that this chapter in the code applies to any action "[s]eeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of [Civil Code] Section 1793.2," (Code Civ. Proc., § 871.20(a).)